

Anticipated review opp/reply/attend hg by Nicholas Nita	0.5	\$400	\$200
		Total Fees	\$8,140
		Costs	\$818.92
		Total Request	\$8,958

The Court awards the Plaintiffs' attorney fees as follows: \$8,140 and \$818.92 in costs. The total amount is \$8958.92.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505093	WEIR VS TRICON RESIDENTIAL	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

CONTINUE

The hearing on the motion to strike is continued. Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrers. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the motion to strike, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion to strike and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 435.5.)

No further briefing will be allowed.

I. Meet and Confer

C.C.P., § 435.5 requires a meet and confer process via phone or in person before filing a motion to strike. Defense counsel's declaration merely indicates that a letter was sent. (Rasmussen Decl. ¶ 2, Exh. A.) As this is not statutorily compliant, the matter will be continued for proper meet and confer efforts as described above.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506532	MARTINEZ VS SOCIAL VOCATIONAL SERVICES, INC.	DEMURRER ON COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

SUSTAIN the demurrer to the 1st, 2nd, 3rd, 6th, and 7th causes of action.

OVERRULE the demurrer to the 4th, 5th, and 8th causes of action.

The motion to strike is moot as to Plaintiff's requests for emotional distress and punitive damages relating to the 1st, 2nd, 3rd, 6th, and 7th causes of action.

DENY the motion to strike Plaintiff's requests for emotional distress and punitive damages as to the 4th, 5th, and 8th causes of action.

*** An order was made for the parties to meet and confer. No meet and confer documents have been filed as ordered. Notwithstanding the order to meet and confer, the Court will rule on the papers submitted.

30 days leave to amend where leave was given.

This Fair Employment and Housing Act ("FEHA") action arises from Plaintiff Victor Martinez' ("Plaintiff") termination from his position with Defendant Social Vocational Services, Inc. ("Defendant").

In the Complaint, Plaintiff alleges that he began working for Defendant in December 2024. Plaintiff alleges that he is a survivor of two previous heart attacks. On